

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC.,

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

FOURTH JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. ("Complainant" or "BBBY"), and Respondent MSC Mediterranean Shipping Company SA ("Respondent" or "MSC" and, collectively with BBBY, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Extend Deadlines ("Motion") respectfully requesting a 30-day extension of the remaining deadlines set forth in the Presiding Officer's December 11, 2024 Third Amended Scheduling Order.

I. THE CURRENT SCHEDULE

1. On December 11, 2024, the Presiding Officer entered a Third Amended Scheduling Order with the following deadlines relevant to this Motion:

January 16, 2025	Joint status report due describing status of discovery
February 21, 2025	Complete depositions of fact witnesses
February 21, 2025	Last day to serve interrogatories, requests for admission, and RFPs
March 7, 2025	Disclosure of initial expert reports, if any

April 7, 2025	Disclosure of rebuttal expert reports, if any
April 10, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
May 9, 2025	Complete expert depositions
May 9, 2025	Close of discovery
June 9, 2025	Complainant's initial brief, proposed findings of fact, and appendix
July 9, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
July 23, 2025	Complainant's reply brief and responses to proposed findings of fact

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

2. As noted in the previous motion, the Parties have continued to be proactive and collaborative regarding discovery in this matter and have conferred extensively to address technical issues and to resolve all pending discovery disputes. The Parties mutually satisfied the November 14, 2024 deadline for substantial completion of production of documents and ESI pursuant to initial RFPs, including significant productions totaling millions of pages of documents, including correspondence, documents, and substantial productions of data. The Parties have undertaken to satisfy the deadlines set forth in the Third Amended Scheduling Order and have worked to assist principals for each Party who have undertaken settlement discussions, including two virtual meetings, and have scheduled a third meeting for January 21, 2025 at which principals and counsel will attend. Scheduling has proven to be a challenge given the schedules of each Party's principals and their disparate geographical locations. If these settlement efforts are not successful, the Parties are further prepared to undertake mediation.

3. The Parties have continued diligently working to review the substantial amount of produced documents and to identify deponents, including during the holiday period. The Parties

have conferred regarding depositions and have exchanged lists of witnesses to be deposed in lieu of formal notices in order to expedite this process. Given the scale of the document productions and the significant amount of time required for review, the Parties reiterate their position that they will not be in able to adequately prepare for and take all fact depositions based upon a full review of the documentary record by the current February 21, 2025 deadline, and consequently would both be prejudiced in their ability to present their claims and defenses fully in their respective briefs or in any eventual hearing in this action.

4. The Parties anticipate collectively taking approximately 20 party and non-party depositions. As stated in the prior Motion to Extend Deadlines dated December 9, 2024, the Parties have continued to work together to identify witnesses and to prepare for depositions in an expedited manner. This notwithstanding, the Parties do not view the recent 30-day extension of the deadline as attainable under the circumstances that were stated previously, including the number of witnesses, the geographic distribution of witnesses, and the need to locate witnesses who are no longer employed by a Party.

5. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." As contemplated, the Parties have produced more than 175 times the 20,000 pages previously cited by the Parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. (*See id.* Docs. 17–18.) As the Presiding Officer notes in her Third Amended Scheduling Order, the Parties have relied on *One Banana* wherein the parties pointed to a

voluminous production of documents and a cyber attack to support requests for schedule extensions. Here, the Parties have suffered delays related to voluminous productions; the transition by one Party from one eDiscovery vendor to an alternative vendor; the exchange of documents secured from overseas storage locations mailed on encrypted hard drives; and securing contact details and testimony from witnesses who are from third parties or who are no longer employed by either party and who reside overseas.

6. Further, our federal courts have recognized that an extension is appropriate when the volume of documents produced, comparable to what has been exchanged in this case, requires significant time for the opposing parties to analyze same in preparation for depositions. *In Re Domestic Airline Travel Antitrust Litigation* 2018 WL 4441507 (D.D.C. Sept. 13, 2018) (production of 3.5 million documents warranted discovery extension).

7. The Parties reiterate their commitment to preventing further requests for additional time and will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, and by conducting depositions by teleconference services rather than in person. There are no current discovery disputes outstanding between the Parties, and the Parties are continuing to confer with one another on an ongoing basis, working collaboratively to move discovery forward as quickly as feasible while facilitating ongoing settlement discussions between principals for both parties.

III. THE RELIEF SOUGHT IS APPROPRIATE TO THE CIRCUMSTANCES

8. As the parties continue to work diligently and collaboratively to review a collective 3,510,741 produced pages and to prepare for approximately 20 fact depositions, the Parties respectfully submit that an extension of the remaining deadlines in the December 11, 2024 Third Amended Scheduling Order is necessary and reasonable to allow the Parties a fair opportunity to

fully review documents, prepare for and take depositions of each other's relevant fact witnesses, and assess the need for additional discovery, including non-party discovery. The Parties will continue to endeavor to avoid asking the Presiding Officer for additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

9. The Parties therefore jointly reiterate their request for relief as was made in the December 9, 2024, Joint Motion to Extend Deadlines¹ and hereby request the following amended schedule (moved an additional 30 days from the original deadlines in the Third Amended Scheduling Order, accounting for weekends and holidays):

March 21, 2025	Complete depositions of fact witnesses
March 21, 2025	Last day to serve interrogatories, requests for admission, and RFPs
April 7, 2025	Disclosure of initial expert reports, if any
May 7, 2025	Disclosure of rebuttal expert reports, if any
May 9, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
June 9, 2025	Complete expert depositions
June 9, 2025	Close of discovery
July 9, 2025	Complainant's initial brief, proposed findings of fact, and appendix
August 8, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
August 22, 2025	Complainant's reply brief and responses to proposed findings of fact

¹ In the December 9, 2024, Joint Motion to Extend Deadlines, the Parties requested a 90-day extension to the previous schedule and were granted relief in the form of a 30-day extension. The Parties maintain that 30 days relief is insufficient to complete discovery without the Parties experiencing prejudice to their ability to present claims and defenses fully in their respective briefs or in any eventual hearing in this action.

10. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this joint Motion.

11. WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: January 16, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

COZEN O'CONNOR

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
J. Lee Hill
(405) 826-3226
lhill@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz
1200 Nineteenth Street NW
Suite 300
Washington, DC 20036
Telephone: (202) 463-2507

*Counsel for Respondent MSC Mediterranean
Shipping Company SA*

*Counsel for Complainant 20230930-
DKButterfly-1, Inc., f/k/a Bed Bath & Beyond
Inc.*